

19STCV29995 19STCV29995

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-08

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Case Number: 19STCV29995 Hearing Date: July 8, 2026 Dept: F47

Dept. F47

Date: 7/8/26

TRIAL DATE: 9/21/26

Case #19STCV29995

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 6/1/26.

MOVING ATTORNEY: Jeffrey S. Kramer

CLIENTS: Defendants Vivian Almache and Jonathan Alexander

Almache

RELIEF REQUESTED: An order relieving Jeffrey S.

Kramer as Defendants Vivian Almache and Jonathan Alexander Almache's counsel in this action.

RULING: The motion is denied without prejudice.

On 6/1/26, attorney Jeffrey S. Kramer filed the instant motion seeking to be relieved as counsel for Vivian Almache and Jonathan Alexander Almache in this action. The declaration filed in support of the motion indicates that attorney Kramer is in

the process of retiring and closing his law practice. Additionally, the declaration states that arrangements have been made for new counsel who has associated into the subject litigation. Attorney Kramer goes on to state that Mr. Almache has been unresponsive throughout most of the litigation and Ms. Almache stopped responding in early 2024. Mr. Kramer further indicates that numerous attempts to communicate with the clients have been made via phone, mail, email and retaining a private investigator to contact them. However, none of the efforts have been successful.

The motion was originally scheduled for hearing on 10/27/26. Pursuant to counsel's ex parte application, the hearing on the motion was advanced to 7/8/26. (See 6/24/26 Minute Order; 6/25/26 Nunc Pro Tunc). The proofs of service attached to the moving papers do not show service of the motion on the clients. The proofs of service attached to the moving papers do show service on attorney Jay Van De Poel on behalf of the clients who appears to be the associated counsel referenced in the declaration. However, the email address listed for attorney Van De Poel in the proofs of service () does not match the email address in eCourt ()). The proof of service for the notice of the Court's 6/24/26 ruling on the ex parte application advancing the hearing on the motion does indicate that the notice was emailed to the clients. However, there is no evidence that the motion itself was served on the clients or that the electronic service address is the client's current electronic service address. See CRC 3.1362(d)(2). The declaration merely states that the emails have not been returned or bounced.

It is also not clear whether the clients will be representing themselves if the motion is granted or whether attorney Jay Van De Poel of Van De Poel & Levy LLP will take over representing the clients in this matter as the proposed order on this motion sets forth the clients address and telephone number.